

The Noise Pollution (Regulation And Control) Rules, 2000

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[The Noise Pollution \(Regulation And Control\) Rules, 2000](#)

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[10.](#)

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[In exercise of the powers conferred by clause \(ii\) of sub-section \(2\) of section 3, sub-section \(1\) and clause \(b\) of sub-section \(2\) of section 6 and section 25 of the Environment \(Protection\) Act, 1986 \(](#)

[29 of 1986](#)

[\) read with rule 5 of the Environment \(Protection\) Rules, 1986, the Central Government hereby makes the following rules for the regulation and control of noise producing and generating sources, namely:-](#)

[1.](#)

[Short title and commencement .-\(1\) These rules may be called The Noise Pollution \(Regulation and Control\) Rules,](#)

2000.

(2)

They shall come into force into the date of their publication in the Official Gazette.

2.

Definitions .-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Environment (Protection) Act, 1986 (29 of 1986

);

(b)

"area/zone" means all areas which fall in either of the four categories given in the Schedule annexed to these rules;

(c)

["authority" means and includes any authority or officer authorised by the Central Government, or as the case may be, the State Government in accordance with the laws in force and includes a District Magistrate, Police Commissioner, or any other officer not below the rank of the Deputy Superintendent of Police designated for the maintenance of the ambient air quality standards in respect of noise under any law for the time being in force;]

(d)

["Court" means a governmental body consisting of one or more Judges who sit to adjudicate disputes and administer justice and includes any Court of law presided over by a Judge, Judges or a Magistrate and acting as a tribunal in civil, taxation and criminal cases;

[Inserted by S.O. 1046(E), dated 22.11.2000 (w.e.f. 24.11.2000).]

(e)

"educational institution" means a school, seminary, college, university, professional academies, training institutes or other educational establishment, not necessarily a chartered institution and includes not only buildings, but also all grounds necessary for the accomplishment of the full scope of educational instruction, including those things essential to mental, moral and physical development;

(f)

"hospital" means an institution for the reception and care of sick, wounded, infirm or aged persons, and includes government or private hospitals, nursing homes and clinics;]

(g)

["person" shall include any company or association or body of individuals, whether incorporated or not;]

[Clause (d) relettered as Clause (g) thereof and Clause (g) so relettered substituted by S.O. 1046(E), dated 22.11.2000 (w.e.f. 24.11.2000).]

(h)

[]

[Clause (e) relettered as Clause (h) by S.O. 1046(E), dated 22.11.2000 (w.e.f. 24.11.2000).]

"State Government" in relation to a Union territory means the Administrator thereof appointed under article 239 of the Constitution.

3.

Ambient air quality standards in respect of noise for different areas/zones .-(1) The ambient air quality standards in respect of noise for different areas/zones shall be such as specified in the Schedule annexed to these rules.

(2)

The State Government [shall categorize] the area into industrial, commercial residential or silence areas/zones for the purpose of implementation of noise standards for different areas.

(3)

The State Government shall take measures for abatement of noise including the noise emanating from vehicular movements and ensure that the existing noise levels do not exceed the ambient air quality standards specified under these rules.

(4)

All development authorities, local bodies and other concerned authorities while planning developmental activity or carrying out functions relating to town and country planning shall take into consideration all aspects of noise pollution as

a parameter of quality of life to avoid noise menace and to achieve the objective of maintaining the ambient air quality standards in respect of noise.

(5)

An area comprising not less than 100 metres around hospitals, educational institutions and Courts may be declared [by the State Government]

[Inserted by Notification No. S.O. 2555(E), dated 10.8.2017 (w.e.f. 14.2.2000).]

as silence area/zone for the purpose of these rules.

[Provided that, an area shall not fall under silence area or zone category, unless notified by the State Government in accordance with sub-rule(2).]

[Inserted by Notification No. S.O. 2555(E), dated 10.8.2017 (w.e.f. 14.2.2000).]

4.

Responsibility as to enforcement of noise pollution control measures .-(1) The noise levels in any area/zone shall not exceed the ambient air quality standards in respect of noise as specified in the Schedule.

(2)

The authority shall be responsible for the enforcement of noise pollution control measures and the due compliance of the ambient air quality standards in respect of noise.

(3)

[The respective State Pollution Control Boards or Pollution Control Committees in consultation with the Central Pollution Control Board shall collect, compile and publish technical and statistical data relating to noise pollution and measures devised for its effective prevention, control and abatement.]

5.

Restrictions on the use of loud speakers/public address system .-(1) A loud speaker or a public address system shall not be used except after obtaining written permission from the authority.

(2)

A loud speaker or a public address system shall not be used at night (between 10.00 p.m. to 6.00 a.m.) except in closed premises for communication within, e.g., auditoria, conference rooms, community halls and banquet halls.

(3)

[Notwithstanding anything contained in sub-rule (2), the State Government may, subject to such terms and conditions as are necessary to reduce noise pollution, permit use of loud speakers or public address systems and the like during night hours (between 10.00 p.m. to 12.00 midnight) on or during any cultural, religious or festive occasion of a limited duration not exceeding fifteen days in all during a calendar year and the concerned State Government or District Authority in respect of its jurisdiction as authorised by the concerned State Government shall generally specify in advance, the number and particulars of the days on which such exemption should be operative.

Explanation. - For the purposes of this sub-rule, the expressions-

(i)

"festive occasion" shall include any National function or State function as notified by the Central Government or State Government; and

(ii)

"National function or State function "shall include"-

(A)

Republic Day;

(B)

Independence day;

(C)

State Day; or

(D)

such other day as notified by the Central Government or the State Government.]

6.

Consequences of any violation in silence zone/area .-Whoever, in any place covered under the silence zone/area commits any of the following offence, he shall be liable for penalty under the provisions of the Act:-

(i)

whoever, plays any music or uses any sound amplifiers,

(ii)

whoever, beats a drum or tom-tom or blows a horn either musical or pressure, or trumpet or beats or sounds any instrument, or

(iii)

whoever, exhibits any mimetic, musical or other performances of a nature to attract crowds.

7.

Complaints to be made to the authority .-(1) A person may, if the noise level exceeds the ambient noise standards by 10 dB (A) or more given in the corresponding columns against any area/zone, make a complaint to the authority.

(2)

The authority shall act on the complaint and take action against the violator in accordance with the provisions of these rules and any other law in force.

8.

Power to prohibit, etc., continuance of music sound or noise .-(1) If the authority is satisfied from the report of an officer in charge of a police station or other information received by him [including from the complainant] that it is necessary to do so in order to prevent annoyance, disturbance, discomfort or injury or risk of annoyance, disturbance, discomfort or injury to the public or to any person who dwell or occupy property on the vicinity, he may, by a written order, issue such directions as he may consider necessary to any person for preventing, prohibiting, controlling or regulating:-

(a)

the incidence or continuance in or upon any premises of-

(i)

any vocal or instrumental music,

(ii)

sounds caused by playing, beating, clashing, blowing or use in any manner whatsoever of any instrument including loudspeakers, public address systems, appliance or apparatus or contrivance which is capable of producing or re-producing sound, or

(b)

the carrying on in or upon, any premises of any trade, avocation or operation or process resulting in or attended with noise.

(2)

The authority empowered under sub-rule (1) may, either on its own motion, or on the application of any person aggrieved by an order made under sub-rule (1), either rescind, modify or alter any such order:

Provided that before any such application is disposed of, the said authority shall afford to the applicant [and to the original complainant, as the case may be,]

[Inserted by S.O. 1569(E), dated 19.9.2006 (w.e.f. 19.9.2006).]

an opportunity of appearing before it either in person or by a person representing him and showing cause against the order and shall, if it rejects any such application either wholly or in part, record its reasons for such rejection.

Schedule

[see rule 3(l) and 4(l)]

AMBIENT AIR QUALITY STANDARDS IN RESPECT OF NOISE

Area Code

Category of Area/Zone

Limits in dB(A) Leq

Day Time

Night Time

(A)

Industrial area

75

70

(B)

Commercial area

65

55

(C)

Residential area

55

45

(D)

Silence Zone

50

40

Note. -

1. Day time shall mean from 6.00 a.m. to 10.00 p.m.

2. Night time shall mean from 10.00 p.m. to 6.00 a.m.

[***]

[Omitted by Notification No. S.O. 2555(E), dated 10.8.2017 (w.e.f. 14.2.2000).]

4. Mixed categories of areas may be declared as one of the four above mentioned categories by the competent authority.

*dB(A) Leq denotes the time weighted average of the level of sound in decibels on Scale A which is relatable to human hearing.

A "decibel" is a unit in which noise is measured.

"A", in dB(A) Leq, denotes the frequency weighting in the measurement of noise and corresponds to frequency response characteristics of the human ear.

Leq : It is an energy mean of the noise level, over a specified period.

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